

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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MARK CHAPMAN,

Plaintiff,

- against -

THE CITY OF NEW YORK, NEW YORK POLICE
DEPT., SERGEANT JOHN ZORRILLA SHIELD NO.
3069, NYPD POLICE OFFICER XAVIER REYES
SHIELD No. 25133 and NYPD POLICE OFFICER
JONATHAN RIVERA SHIELD NO. 27011, NYPD
POLICE OFFICER JOHN DOES #1-3, all in their
individual and official capacities,

Defendants.
----- X

Index No.

COMPLAINT

Jury Trial Demanded

Plaintiff, MARK W. CHAPMAN, (“CHAPMAN” and “Plaintiff”) by and through his attorneys, The Aboushi Law Firm, PLLC, complaining of the Defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. On July 31, 2021, at approximately 2:00am, Defendant NYPD John Zorrilla and Defendants NYPD Police Officers Reyes and Rivera went on an extreme assault spree against civilians in the subway as part of an assignment to curb fare evasion. Defendants used a maneuver wherein one of the Defendants hugged the civilians around their upper body causing their hands to be restricted while another Defendant pulled their legs from beneath them causing them to slam into the ground.
2. On the same night, Plaintiff lawfully entered the subway station of Delancey and Essex and witnessed the assaults. Defendants assaulted Plaintiff using the maneuver described above. Defendants pepper sprayed Plaintiff at close range in Plaintiffs’ face, dropped him

to the floor with such force that he had a seizure then stole \$850 from his wallet and replaced the money with what appeared to be a pink slip copy of a criminal summons. The frivolous, malicious and false criminal summons was dismissed in its entirety in favor of Plaintiff.

3. Plaintiff now brings this civil rights action to recover money damages as a result of Defendants violations of Plaintiffs rights under 42 U.S.C. §1983, Fourth, Fourteenth, Amendments of the United States Constitution and the laws of the State of New York.

II. JURISDICTION AND VENUE

4. On August 9, 2021, and within ninety (90) days after the claim herein arose, Plaintiff served a Notice of Claim and has satisfied all administrative requirements.
5. More than thirty (30) days have elapsed since Plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the Defendant has neglected and/or refused to make any adjustment and/or payment.
6. This action is being commenced within one year and ninety days of the date of the occurrence herein.
7. Venue is proper in the Supreme Court of the State of New York, New York County, because the acts in question occurred in the State of New York, New York County.

III. THE PARTIES

8. The Plaintiff MARK CHAPMAN is a resident of the City of New York.
9. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
10. Defendant THE CITY OF NEW YORK maintains the New York City Police Department ("NYPD"), a duly authorized public authority and/or police department, authorized to

perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, CITY OF NEW YORK.

11. Upon information and belief, Defendant SERGEANT JOHN ZORILLA shield No. 3069 is a resident of New York, a sergeant with the NYPD and an agent of the City of New York, and at all times was acting within his official capacity as a Sergeant, including but not limited to, taking action as a sergeant, in uniform, while displaying a gun and a badge. Defendant SGT. JOHN ZORILLA is sued herein in his individual and official capacity.
12. Upon information and belief, Defendant NYPD POLICE OFFICER XAVIER REYES shield no. 25133 is a resident of New York, a member of the NYPD and an agent of the City of New York, and at all times was acting within his official capacity, including but not limited to, taking action as a police officer, in uniform, while displaying a gun and a badge. Defendant REYES is sued herein in his individual and official capacity.
13. Upon information and belief, Defendant NYPD POLICE OFFICER JONATHAN RIVERA shield no. 27011 is a resident of New York, a member of the NYPD and an agent of the City of New York, and at all times was acting within his official capacity, including but not limited to, taking action as a police officer, in uniform, while displaying a gun and a badge. Defendant RIVERA is sued herein in his individual and official capacity.
14. That at all times hereinafter mentioned, the Defendant New York City Police Officers “John Does 1-3” (collectively, “Defendant ‘John Doe’ Police Officers” or “Defendant Officers”), were duly sworn Police Officers of said department and were acting under the supervision of said department and according to their official duties. Defendant John Does 1-3 are sued herein in their individual and official capacity.

15. That at all times relevant to this action, the Defendant New York City Police Officers “John Does 1-3”, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

IV. FACTUAL ALLEGATIONS

16. On July 31, 2021, at some time between 2:00am and 3:00am, Plaintiff was lawfully present at the Delancey and Essex Street MTA subway station and entered the station to make is way home.
17. Upon entering the subway station, Plaintiff pulled out cash to purchase a metro card and witnessed Defendants Zorrilla, Reyes and Rivera, in plain clothes, yelling obscenities while surrounding a man who they had pepper sprayed, and was sitting on the floor on the paid side of the turnstiles.
18. Defendant Zorrilla was wearing a red T-Shirt with the statement “Billionaire In Training” in white lettering written across it. Defendant Rivera wore a Mets jersey. Defendant Reyes had a backpack and wore a Yankees jersey and blue jeans. Defendant Zorrilla’s NYPD badge was visibly displayed as well as his service weapon.
19. Plaintiff made eye contact with Defendant Sgt. Zorrilla while his cash was in his hand and Defendant Sgt. Zorrilla saw Plaintiff’s cash. After purchasing a metro card, Plaintiff made his way to the turnstile to pay the fare.
20. On the other side of the turnstile, Plaintiff witnessed Defendants Sgt. Zorrilla and Police Officers Reyes and Rivera curse at the man kneeling on the floor and saw Defendant Reyes push the man with his feet.

21. Plaintiff asked Defendant Sgt. Zorrilla why he was surrounding the man and what he was going to do to him. Plaintiff then began recording the Defendants via his cell phone.
22. Plaintiff attempted to go through the turnstile and Defendant Sgt. Zorrilla told him, “You got a lot of money, go take a cab home, you’re not getting on the train”.
23. Plaintiff insisted he be permitted to take the train home and Defendant Zorrilla then walked back to Defendant Reyes and told him to turn around so that he could access his backpack. Defendant Zorilla removed pepper spray from Defendant Reyes’ backpack.
24. Moments later, a female civilian entered the subway station and passed through the turnstile. Defendant Sgt. Zorrilla yelled to her “get the fuck out of here” and “go through the fucking gate”. The female appeared to be shocked and scared of Defendant Zorrilla. Defendant Zorrilla commanded Defendants Reyes and Rivera to “go get her”. Defendant Zorilla grabbed the female and dragged her through the emergency exit door and shoved her into Plaintiff.
25. Defendant Reyes followed Defendant Zorilla and helped drag the female through the emergency exit door. Plaintiff was standing on the other side of the emergency exit door.
26. Without provocation or basis, Defendant Zorilla pepper sprayed Plaintiff at close range in his face. Plaintiff’s eyes and face immediately began burning. Defendant Reyes grabbed Plaintiff and Defendant Zorilla pulled his legs causing his head to slam into the ground.
27. Defendants then turned Plaintiff on to his stomach and handcuffed him. Plaintiff yelled to the Defendants that he could not breathe and feared he would die.
28. Defendants ignored Plaintiff’s cry for help then removed Plaintiff’s wallet from his back pocket. Defendants stole \$850 in cash from Plaintiff’s wallet and replaced it with a wrinkled and illegible pink document that appeared to be a criminal summons.

29. At no time did the Defendants issue Plaintiff a voucher for his monies.
30. Plaintiff struggled to breathe, was dizzy, in pain and scared for his life as Defendants pressed their knees into Plaintiff's back.
31. While Plaintiff was still on the ground, he began to seize, and emergency medical technicians were called to respond to what now became a medical emergency.
32. Defendant Zorrilla refused to remove the handcuffs on Plaintiff and Plaintiff heard EMTs at the scene begging Defendant Zorrilla to remove the cuffs so that they could administer aid to Plaintiff.
33. EMTs injected Plaintiff with anti-seizure medication and rushed him to the hospital.
34. On August 1, 2021, upon his release from the hospital, Plaintiff reported the incident to a local precinct. The Sergeant on duty informed Plaintiff they were aware of the allegations against Defendant Sgt. Zorrilla and that videos of the assault that night had gone viral on social media.¹
35. Plaintiff later learned that Defendants Zorrilla, Reyes and Rivera continued the assault spree against 2 other civilians who questioned his aggressive and violent behavior.²
36. Other Civilians accused Defendant Zorrilla of using the same maneuver of pulling their legs from beneath them causing them to slam into the ground.³
37. The false charges against Plaintiff were later dismissed in their entirety in favor of Plaintiff.
38. As a result of Defendants acts, Plaintiff suffered severe and ongoing injuries, including but not limited to headaches, dizziness, pain, lacerations, bruises, and walking impediment.

¹ <https://www.youtube.com/watch?v=5oEInahIc5k>

² <https://newyork.cbslocal.com/2021/08/02/nypd-sergeant-throws-man-to-ground-violent-arrest-daniel-ali/>

³ Id.

39. Plaintiff suffered fear and apprehension as a result of the Defendants' conduct and said conduct caused him great alarm and fear for his personal safety, fear of injury and death.
40. Plaintiff's injuries include severe and permanent emotional, physical and psychological damage.
41. Defendants Zorrilla, Reyes and Rivera all have lengthy and violent history that was known to the NYPD prior to the incident alleged here.
42. Defendant Zorrilla has a lengthy and violent history that was known to the NYPD prior to the incident alleged here, including twenty-one allegations of misconduct, including retaliatory arrest and use of force by pepper spray, recorded with the Civilian Complaint Review Board and six lawsuits each alleging constitutional violations in part, due to use of force by Defendant Zorrilla.
43. As a result of the foregoing, Plaintiff Mark Chapman sustained, *inter alia*, physical, mental and emotional injuries, deprivation of property, and violation of his civil rights.

AS FOR THE FIRST CAUSE OF ACTION

Excessive Force Excessive Force Pursuant to 42 U.S.C. § 1983 Under the Fourth and Fourteenth Amendments to the United States Constitution

44. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
45. All of the aforementioned acts of the Defendant CITY OF NEW YORK, and the individual Defendants and their agents, servants and employees, were carried out under the color of state law.
46. Upon information and belief, each Defendant, intentionally and/or recklessly used and attempted to use unreasonable, unlawful and/or excessive force on Plaintiff, including but not limited to, spraying pepper spray directly into Plaintiff's face at close range, pulling his

legs from beneath him causing his head to slam into the floor, and pressing their knee into his back to the point where he could not breathe, thereby depriving Plaintiff of his right to be free from assault, battery, the use of unreasonable, unlawful, excessive, and improper force.

47. Defendants Reyes, Rivera and Zorrilla, intentionally deprived Plaintiff of his monies and replaced said monies with a criminal summons that was later dismissed as frivolous.
48. The aforementioned individual Defendants in their official capacities as Police Officers carried out the acts complained of, with the entire actual and/or apparent authority attendant thereto.
49. Defendants' actions were without any legal justification, and the force used upon Plaintiff was excessive, unwarranted, inappropriate, reckless, negligent and wholly improper.
50. Defendants' use of force against Plaintiff was not justified as he posed no threat to the Defendants that required the use of force used against him.
51. Defendants' actions caused Plaintiff to fear for his life and safety, and at no point was any of the contact and attempted contact consensual or privileged.
52. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was subject to unlawful excessive force, seized and was caused to suffer personal injuries, a medical emergency, violation of his civil rights, emotional distress, anguish, anxiety, fear, and loss of freedom. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A SECOND CAUSE OF ACTION

**Violation of the Right to be Free from Unreasonable Searches and Seizures Under
the New York Constitution**

53. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above

paragraphs with the same force and effect as if fully set forth herein.

54. Defendants, and their agents, servants and/or employees intentionally handcuffed, arrested and imprisoned Plaintiff, without any just cause or grounds therefore.
55. Plaintiff was wholly innocent and was forced to submit to the aforesaid arrest entirely against his will.
56. The Defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuffed and arrest the Plaintiff; Plaintiff was conscious of his arrest; did not consent to his arrest; and the arrest was not otherwise privileged.
57. Defendants are liable to Plaintiff because they detained Plaintiff without probable cause or reasonable suspicion.
58. Article I, § 12, of the New York Constitution protect the right of persons to be free from unreasonable searches and seizures. The illegal search described above by Plaintiff is prohibited by the New York State Constitution.
59. These constitutional abuses and violations were, and are, directly and proximately cause by policies, practices and/or customs devised, implemented, enforced, promoted, encouraged, and sanctioned by Defendants.
60. As a direct and proximate result of the acts and omissions of the Defendants, Plaintiff has been deprived of their right to be free from unreasonable searches and seizures under the Constitution and laws of the State of New York.
61. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff demands judgment against Defendants in a sum of money to be determined at

trial.

AS A THIRD CAUSE OF ACTION
Failure to Intervene under New York State Constitution

62. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
63. The Defendants collectively had an affirmative duty to intervene on the Plaintiff's behalf to prevent the violation of his constitutional rights. Each of the Defendant-Officers engaged in the use of excessive force and assault of the Plaintiff.
64. While each Defendant-Officer was engaged in the use of excessive force and the violation of Plaintiff's rights as alleged herein, those who were not using force against Plaintiff failed to intervene to prevent the use of excessive force in violation of Plaintiff's rights, despite an opportunity to do so.
65. The Defendant-Officers watched as Plaintiff was unlawfully subjected to excessive, unnecessary and unlawful force, pepper sprayed, had his head slammed into the ground, and suffered a medical emergency in the form of a seizure that required immediate treatment from emergency medical technicians.
66. Defendants observed Plaintiff screaming for help because he could not breathe while Defendant Officer's knee was pressed into his back.
67. Defendant-Officers could have also prevented the theft of Plaintiff's monies. Instead, Defendant-Officers worked together to steal Plaintiff's cash and made sure Plaintiff knew they took it by placing a pink criminal summons in place of the cash.
68. Each Defendant had an opportunity to intervene as the use of excessive, unnecessary and unlawful force and theft was being deployed against Plaintiff in front of them and within

their immediate area. Each Defendant failed to instruct other officers not to use force or physically restrain the officers from using force.

69. Rather than intervene to stop the use of excessive force and the violation of Plaintiff's rights as alleged in this Complaint and as the law requires, the Defendant Officers did nothing or enabled the acts alleged herein.
70. The Defendants collectively failed to intervene on Plaintiff's behalf in order to prevent the violation of his constitutional rights despite having substantially contributed to the circumstances within which the Plaintiff's rights were violated by their affirmative conduct.
71. Defendant Officers, numbering at least four (4) including Sgt. Zorrilla, were present as Plaintiff was subjected to excessive force and assaulted to the point where he suffered a seizure. None of said Officers intervened to stop the egregious abuses Plaintiff was subjected to.
72. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

**AS A FOURTH CAUSE OF ACTION
Assault and Battery under New York State Law**

73. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
74. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiff placed him in fear of imminent harmful and offensive physical contacts.

75. Defendants' pepper sprayed Plaintiff and pulled his legs from beneath him causing him to suffer substantial injuries. Defendants continued said assault and battery after Plaintiff made them aware that he could not breathe. Plaintiff's arrest was without probable cause or basis and was solely effectuated because Defendants did not want to be recorded while they violated the rights of other patrons and citizens.
76. Among other things as described above, Defendants' search and seizure, and use of force against Plaintiff were illegal physical contacts.
77. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A FIFTH CAUSE OF ACTION
Monell Liability under 42 U.S.C. § 1983

78. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
79. At all relevant times, Defendant City of New York and NYPD was the employer of the individual Defendant officers, and these individual Defendants were acting as its agents, servants and employees.
80. At all relevant times, Defendant City of New York maintained the New York City Police Department which acts under the direction and supervision of the aforementioned municipal corporation, City of New York.

81. Defendants, individually and collectively, acted under color of law and engaged in conduct that constituted custom, usage, practice, procedure or rule of the respective municipality or authority, which is forbidden by the United States Constitution.
82. The aforementioned customs, policies, practices, procedures and rules of the Defendant City of New York and New York Police Department, include but are not limited to:
- a. Arresting innocent persons without individualized probable cause;
 - b. Fabricating evidence in connection with a persons' arrest and prosecution to justify said arrest, support said prosecution and conceal police misconduct;
 - c. Failing and/or refusing to issue property vouchers to persons arrested;
 - d. Permitting the indiscriminate use of danger pepper spray on persons in public placed;
 - e. Permitting the use of excessive force, dangerous maneuvers and hostile interactions in furtherance of fare evasion prevention;
 - f. Intentionally, knowingly, recklessly or with deliberate indifference fail to properly and adequately control and discipline on a continuing basis its employees, agents and/or servants, particularly NYPD officers and/or otherwise failed to prevent the individual defendants from unlawfully and maliciously conducting, permitting or allowing the violations alleged above in violation of the rights, privileges and immunities guaranteed to Plaintiff by the Constitutions of the United States and the State of New York.
83. Defendants acted under color of law pursuant to an official policy or custom and practice of the Defendant City of New York and NYPD and intentionally, knowingly, recklessly or

with deliberate indifference falsely charged Plaintiff with disorderly conduct by way of a criminal summons in an effort to cover up Defendants' assault of Plaintiff.

84. Defendants acted under color of law pursuant to an official policy or custom and practice of the Defendant City of New York and NYPD and intentionally, knowingly, recklessly or with deliberate indifference removed monies from Plaintiff's wallet, failed to issue him a voucher and failed to return said monies to him. Multiple lawsuits have been filed against the Defendant, City of New York, due to the NYPD's refusal and failure to issue property vouchers to people whom they've arrested including the following cases:

- i. Ali Ugurlu v. The City of New York; 2022 WL 298552 (N.Y.Sup.);
- ii. Deluca v. The City of New York; 2021 WL 4026846 (N.Y.Sup.).

85. Defendant City of New York and NYPD had knowledge of, or had they diligently and reasonably exercised their duties to instruct, supervise, control, monitor and discipline its employees, agents and/or servants, would have had knowledge of the wrongful acts and/or omissions identified above and intentionally, knowingly or with deliberate indifference to Plaintiff's rights, failed or refused to prevent their commission and/or omission.

86. Defendant City of New York and NYPD, therefore, directly or indirectly, and under color of law, thereby approved or ratified the unlawful, malicious and wanton conduct of the individual Defendant police officers named herein in furtherance of fare evasion prevention.

87. Defendant City of New York and NYPD, therefore, directly or indirectly, and under color of law, thereby approved or ratified the unlawful, malicious and wanton conduct of the individual Defendant police officers named herein permitting the dangerous and reckless use of pepper spray on civilians in public.

88. The City of New York is also vicariously liable under New York State law for the aforesaid

torts.

89. In addition, the City of New York and the NYPD and the Defendant-Officers acted under color of law pursuant to an official policy or custom and practice of the NYPD regarding tactics of plain clothes officers and access to MTA Subway stations whereby the use of unlawful and excessive force was permitted, tolerated, and condoned, and intentionally, knowingly, recklessly or with deliberate indifference, in furtherance of their employment.

AS A SIXTH CAUSE OF ACTION

Negligent Supervision, Hiring, Monitoring, Training and Retention of Employees

90. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
91. Defendants Reyes, Rivera and_Zorrilla have a lengthy and violent history that was known to the NYPD prior to the incident alleged here. Defendant Zorrilla has a lengthy and violent history including twenty-one allegations of misconduct, including retaliatory arrest and use of force by pepper spray, recorded with the Civilian Complaint Review Board and six lawsuits each alleging constitutional violations in part, due to use of force by Defendant Sgt. Zorrilla wherein over \$282,000 was paid in settlements.
92. Defendant City of New York failed to use reasonable care in the selection of its employees, against and/or servants, failed to properly train and/or supervise the individual Defendants, and failed to provide the appropriate safeguards to prevent the excessive force, assault, harassment, negligence, and collective violation of the Plaintiff's rights.
93. Defendants failed to adequately train and supervise the individual Defendants who assaulted, battered, falsely imprisoned, and/or negligently injured Plaintiff.
94. Defendant City of New York is liable to Plaintiff because the occurrence and injuries sustained by Plaintiff, were caused solely by, and as a result of the malicious, reckless,

negligent, and/or intentional conduct of Defendant City of New York, and the NYPD, its agents, servants and/or employees, as set forth above, without provocation on the part of Plaintiff contributing thereto, specifically, the negligent and reckless manner in which said Defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers.

95. The individual Defendants were acting within the scope of their employment as New York City Police Officers when they committed the above-described acts against Plaintiff, including falsely arresting, assaulting, and battering Plaintiff.
96. The City of New York is therefore vicariously liable under New York State law for the aforesaid torts.
97. Defendant City failed to properly and adequately control, monitor, and discipline on a continuing basis their employees, agents and/or servants and/or otherwise failed to prevent the individual Defendants from unlawfully using excessive force upon Plaintiff and violating his rights.
98. The City failed to discipline and/or demote Defendants, Reyes, River and Zorrilla, despite clear notice of their propensity to use excessive force and abuse their authority as a sergeant and police officer.
99. The City of New York also failed to train its officers that if they see other officers engaged in misconduct/unlawful activity, such as the unlawful use of force, they must intervene to prevent it.
100. In reckless disregard for Plaintiff's rights, Defendants failed to supervise their officers and train them so as to avoid the violation of Plaintiff's rights protected by the New York State Constitution.

101. The City is on notice that its officers have continually violated the rights of law-abiding citizens, yet has done nothing to hold any officer accountable, impose any training, and instead encouraged officers to continue to use unlawful tactics such as the ones described herein, with the explicit goal of violating Plaintiff's rights and the exercise of same.
102. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS A SEVENTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

103. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
104. The actions of the collective Defendants heretofore described, constituted unlawful assault and battery and were designed to and did cause bodily harm, pain and suffering both in violation of Plaintiff's Constitutional rights.
105. Defendants' actions were undertaken under color of law and would not have existed but for Defendants using their official power.
106. Defendants' conduct was extreme and outrageous in that Defendants retaliated against Plaintiff for recording their assault of civilians, and for trying to use the subway system to get home.
107. Defendants' conduct was extreme and outrageous in that they Defendant Officers pepper sprayed Plaintiff in his face at close range without cause or provocation.
108. Defendants' conduct was extreme and outrageous in that while Plaintiff was in excruciating

pain from having been pepper sprayed by Defendants, Defendants pulled Plaintiff's legs from under him causing him to slam his head into the ground and inducing a seizure.

109. Defendants' conduct was extreme and outrageous in that while Plaintiff was severely injured, instead of calling for medical assistance, Defendants turned Plaintiff on his stomach and placed him in handcuffs.

110. Defendants' conduct was extreme and outrageous in that while Plaintiff told them that he could not breathe, but Defendants pressed their knee into his back.

111. Defendants' conduct was extreme and outrageous in that while Plaintiff was suffering and under arrest, Defendants stole \$850 in cash from his wallet and replaced it with an illegible pink criminal summons.

112. Defendants' conduct was extreme and outrageous in that they delayed Emergency medical Technicians from assisting Plaintiff because Defendants refused to remove the handcuffs as Plaintiff endured a seizure.

113. Defendants acted with intent to cause, or disregard of a substantial probability of causing, severe emotional distress and physical injury to Plaintiff.

114. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS AN EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

115. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

116. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.
117. The aforementioned conduct was committed by employees, servants and/or agents of Defendant City of New York while acting within the scope of their employment.
118. The aforementioned conduct was committed by employees, servants and/or agents of Defendant City of New York while acting in furtherance of their employment.
119. The aforementioned conduct was unnecessary, intentional and done for the sole purpose of causing severe emotional distress to Plaintiff.
120. The aforementioned conduct was negligent and caused severe emotional distress to Plaintiff.
121. Defendants are liable to Plaintiff because Defendants owed Plaintiff a cognizable duty of care as a matter of law and breached that duty, particularly as Defendants had already pepper sprayed Plaintiff, yet Defendants proceeded to pull Plaintiff's legs out from under him causing his head to hit the ground, then deprived him of oxygen and pressed their knee into Plaintiff's back all of which induced a seizure.
122. Through their unlawful and negligent actions, as more fully described above, the Defendant Officers intentionally and/or negligently inflicted emotional distress upon the Plaintiff.
123. The negligent, extreme, and outrageous actions of the collective Defendants heretofore described directly caused Plaintiff extreme emotional distress and violated Plaintiff's rights as afforded to him by the Constitution of the State of New York.
124. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional

distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries.

Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

AS AN NINTH CAUSE OF ACTION

False Imprisonment and False Arrest Pursuant to 42 U.S. C. 1983 Under the Fourth and Fourteenth Amendments to the United States Constitution

125. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

126. Plaintiff was subject to illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

127. Defendants did not have probable cause to seize, detain, or arrest Plaintiffs.

128. Defendants seized Plaintiffs without a written judicial warrant authorizing them to do so.

129. Defendants' seizure of Plaintiffs was without privilege or lawful justification.

130. Plaintiffs did not consent and were conscious of the confinement by Defendants.

131. Defendants acted with intent to cause, or disregard of a substantial probability of causing, severe emotional distress and physical injury to Plaintiff.

132. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff

AS AN TENTH CAUSE OF ACTION

Malicious Prosecution

Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiffs' Rights Protected Under the Fourth and Fourteenth Amendments to the United States Constitution

133. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
134. Plaintiff hereby incorporate by reference the allegations set forth in all preceding and subsequent paragraphs as if fully set forth herein.
135. Upon information and belief, Defendants misrepresented and falsified evidence to the prosecutor and/or failed to make a full statement of the relevant evidence - including potentially exculpatory evidence - to the prosecutor.
136. Defendants were directly and actively involved in the initiation or prosecution of criminal proceedings against Plaintiff, including by supplying and creating false information to be included in NYPD paperwork that was included in NYPD paperwork, providing falsely sworn information in accusatory instruments, and/or providing false information to the prosecutor.
137. Defendants lacked probable cause to initiate and continue criminal proceedings against Plaintiff.
138. Defendants acted with malice in initiating criminal proceedings against Plaintiff.
139. Notwithstanding Defendants' misconduct, the criminal proceedings against Plaintiff was favorably terminated.
140. As a result of Defendants' acts and omissions, Defendants deprived Plaintiffs of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.
141. Defendants' unlawful conduct was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

142. As a direct and proximate result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, and a medical emergency with lasting and ongoing injuries. Plaintiff.

**AS AN ELEVENTH CAUSE OF ACTION
Respondeat Superior**

143. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

144. Defendants were acting within the scope of their employment as officers on duty and in uniform, for the City of New York when they committed the above actions.

145. Defendant City of New York, as the employer of NYPD Officers, is responsible for the wrongdoing of NYPD Officers under the doctrine of respondeat superior.

146. As such, the City of New York is liable for the actions of the Defendant officers and are liable for all damages, attorneys' fees, and other recoverable costs and items.

RELIEF REQUESTED

WHEREFORE, Plaintiff demands that judgment be entered against the Defendants, jointly and severally, for:

- (a) any and all damages sustained by the Plaintiff arising from the foregoing wrongful and unlawful acts of the Defendants;
- (b) punitive damages against the individual Defendant-Officers where permissible by law;
- (c) any and all damages in an amount to be determined at trial against the City of New York;
- (d) Statutory attorney's fees, disbursements, and costs of the action pursuant to, inter alia, 42 U.S.C. § 1988, New York Civil Rights Law § 79-P(3)(d), and New York common law;
- (e) interest, both pre-judgment and post-judgment;

- (d) a declaration that Defendant's violated the rights of Plaintiff and,
- (f) all other such relief as this Court may deem appropriate, equitable, and just.

JURY DEMAND

Plaintiff demands a trial by jury in this action for all issues triable by a jury.

Dated: March 15, 2022

Respectfully Submitted,



The Aboushi Law Firm, PLLC
Attorneys for Plaintiff
1441 Broadway, Fifth Floor
New York, New York 10018
Telephone: (212) 391-8500
Facsimile: (212) 391-8508
Tahanie@Aboushi.com

ATTORNEY VERIFICATION

THE UNDERSIGNED, AN ATTORNEY ADMITTED TO PRACTICE IN THE COURTS OF NEW YORK STATE, TAHANIE A. ABOUSHI, ESQ., THE ATTORNEY FOR THE PLAINTIFF HEREIN. DEPONENT HAS READ THE FOREGOING COMPLAINT AND KNOWS THE CONTENT TO BE TRUE OF HER OWN KNOWLEDGE, EXCEPT AS TO MATTERS ALLEGED ON INFORMATION AND BELIEF, AND AS TO THOSE MATTERS, SHE BELIEVES THEM TO BE TRUE BASED UPON LETTERS, RECORDS AND DOCUMENTS IN HER POSSESSION AND COMMUNICATIONS WITH PLAINTIFF(S).

THE DEPONENT HAS VERIFIED THIS COMPLAINT IN ACCORDANCE WITH CPLR §3020(D)(3). THE UNDERSIGNED AFFIRMS THAT THE FOREGOING STATEMENTS ARE TRUE, UNDER THE PENALTIES OF PERJURY.

DATED: New York, New York
March 15, 2022



TAHANIE A. ABOUSHI, ESQ.